

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: July 28, 2026 TIME: 9:00 A.M. and 9:01 A.M.

To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

FOR APPEARANCES: Department 1 is fully open for in-person hearings. The Court strongly prefers **in-person** appearances for all contested law and motion matters. For all other hearings, appearances must be **in-person or by video**. Department 1 uses Unicorn Digital Courtroom (UDC) platform. Please click on this link if you need to appear remotely and then scroll down to the link for Department 1: <https://santaclara.courts.ca.gov/online-services/remote-hearings>. This system requires advance registration with a case number and hearing date. **Telephonic appearances are prohibited, unless permitted by the Court.** (Local Rule 5). If you must appear virtually, you must use video.

SCHEDULING MOTION HEARINGS: Please go to <https://reservations.scsccourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri). to reserve a hearing date for your motion before you file and serve it. You must then file your motion papers no more than five court days after reserving the hearing date, or else the date will be released to other cases.

FOR COURT REPORTERS: The Court is no longer able to provide official court reporters for civil proceedings (as of July 24, 2017). If you want to have a court reporter to report your hearing, you must submit the appropriate form, which can be found here:

https://www.scsccourt.org/general_info/court_reporters.shtml

RECORDING IS PROHIBITED: As a reminder, most hearings are open to the public, but state and local court rules prohibit recording of court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

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LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
<u>LINE 1</u>	20CV373378	Arthur Mungaray vs Greenpoint Mortgage Funding, Inc.	Motion for Leave to File an Answer in Intervention Scroll down to Line 1 for Tentative Ruling.
<u>LINE 2</u>	23CV411778	Bernardo Magana Loya et al vs General Motors LLC	Motion for Attorney's Fees and Cost Scroll down to Line 2 for Tentative Ruling.
<u>LINES 3-4</u>	25CV457823	Joey Mowry vs Daljeet Sagoo	Motion to Compel Responses to Form Interrogatories (Line #3); Special Interrogatories (Line # 4); and Sanctions Scroll down to Lines 3-4 for Tentative Ruling.
<u>LINE 5</u>	25CV463068	Alejandro Loquillano vs Santa Clara Valley Medical Center et al	Motion for Leave to File First Amended Complaint On October 23, 2025, plaintiff Alejandro Loquillano filed a motion for leave to file a First Amended Complaint. However, the motion was not accompanied by a proof of service. As a threshold matter, Code of Civil Procedure, section 1005(b) provides that a moving party must file and serve all moving papers at least 16 court days prior to the hearing. Here, there is no proof of service indicating that the plaintiff served the motion on the defendant. Therefore, the motion is DENIED without prejudice.
<u>LINE 6</u>	25CV483365	Jennifer Voges et al vs Huiqiong Deng et al	Demurrer Scroll down to Line 6 for Tentative Ruling.

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LAW AND MOTION TENTATIVE RULINGS

9:01 A.M.			
<u>LINE 1</u>	18CV338507	Midland Funding LLC vs Priscilla Hernandez	Claim of Examination Parties to appear.
<u>LINE 2</u>	24CV441593	Fuheng, Inc. et al vs Zihan Liu	Order of Examination OFF CALENDAR. Moving party withdrew the examination.

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9:00 A.M.

Calendar Line # 1

Case Name Arthur Mungaray vs Greenpoint Mortgage Funding, Inc.

Case No. 20CV373378

Motion for Leave to File an Answer in Intervention

I. BACKGROUND

A. BRIEF FACTUAL AND PROCEDURAL HISTORY

This case stems from a November 19, 2020 Complaint filed by Plaintiff Arthur Mungaray (“Mungaray”) involving the real property located at 495 West Dunne Avenue, Morgan Hill, California 95037 (“Subject Property”). Plaintiff Mungaray seeks quiet title to the Subject Property and asserts that the mortgage was paid in full. (“Complaint”). In the Complaint, Plaintiff named Defendant Greenpoint Mortgage Funding, Inc. (“Greenpoint”), the original lender of the secured loan, but did not name Wells Fargo, N.A. (“Complaint”). Wells Fargo asserts that it is the beneficiary of a Deed of Trust (Santa Clara County Recorder’s Office, Instrument No. 18561062) on the Subject Property that was recorded on September 6, 2005. (Wells Fargo Motion, p. 2; Request for Judicial Notice, Vol. 1, No. 1; Exhibit 1). The Deed of Trust reflects that Plaintiff Mungaray obtained a \$500,000.00 loan from the original lender, Defendant Greenpoint that was secured on the property. (*Id.*, at p. 5). On February 16, 2012, a corporate assignment of the Deed of Trust was recorded (Instrument No. 21540371) reflecting assignment of the Deed of Trust by beneficiary MERS to Wells Fargo Bank. (*Id.*, at p. 6; Request for Judicial Notice, Vol. 1, No. 2; Exhibit 2). Wells Fargo avers that the subject property is not free and clear. (*Id.*).

On August 8, 2024, the Honorable Evette Pennypacker entered an Entry of Default and Final Judgment against Defendant Greenpoint and ordered that the Deed of Trust, a Notice of Default and a Notice of Trustee’s Sale were void. Greenpoint filed a Motion to Vacate and Set Aside Void Judgment Pursuant to Code Civ. Proc. § 473(d), which the Honorable Dan Nishigaya signed on behalf of the Honorable Shella Deen and granted on November 24, 2025. The Order provides, “ “IT IS FURTHER ORDERED that this Court’s Entry of Default and Final Judgment entered on August 8, 2024, is VACATED and set aside as void ab initio and this case is REINSTATED.” (Minute Order, November 24, 2025).

On December 11, 2025, Plaintiff Mungaray filed a Notice of Appeal (No. H053929) that is pending.

B. MOTION FOR LEAVE TO FILE AN ANSWER IN INTERVENTION

Wells Fargo, N.A. Successor by merger to Wells Fargo Bank Minnesota, N.A. f/k/a Northwest Bank Minnesota, N.A. as trustee for structure asset mortgage investments II, Inc. Greenpoint Mortgage Funding Trust 2005-AR5, Mortgage Pass through Certificates Series 2005-AR5 (hereinafter “Wells Fargo”) filed this motion for leave to file an Answer in Intervention on March 27, 2026. Wells Fargo asserts that its interest as beneficiary of the Deed of Trust secured by the Subject Property is not adequately represented in this case. (Wells Fargo’s motion, p. 3). Wells Fargo seeks to protect its interest in the Subject Property through intervention and submits intervention under California Code of Civil Procedure section 387. (*Id.*). Wells Fargo asserts that its application to intervene is timely and submits a Proposed Answer in Intervention as Exhibit A to its moving papers. Based on its interest, specifically due to its recorded beneficiary status in the Deed of Trust on the Subject Property, Wells Fargo seeks mandatory intervention under section 387(b). (*Id.*, at p. 9-10). In the alternative, Wells Fargo submits permissive intervention would be appropriate given its interest in this litigation, successor of either of the parties, or an interest against both under section 387(a). (*Id.*, at p. 9-10).

The Court has carefully reviewed Wells Fargo’s moving papers including, notice of motion and memorandum of points and authorities (totaling 43 pages), Requests for judicial notice volumes 1 and 2 (totaling 245 pages and 464

pages); Greenpoint's non-opposition (totaling 3 pages); Opposition, including Declaration of Barry B. Eskanos (totaling 18 pages); Declaration of Arthur Mungaray (totaling 16 pages); Supplemental opposition by Defendant Mungaray with attached Exhibits 1-4 (totaling 16 pages); Declaration of Mungaray (totaling 5 pages); Opposition (totaling 21 pages); Supplemental Opposition and Declaration of Barry B. Eskanos and Exhibits 1-4 (totaling 24 pages); Reply brief in support of opposition (totaling 8 pages); proofs of service; and the pleadings.

II. LEGAL STANDARD

A. INTERVENTION

Pursuant to California Code of Civil Procedure section 387(b), intervention occurs when a nonparty becomes a party to an action by:

- (1) Joining a plaintiff in claiming what is sought by the complaint.
- (2) Uniting with a defendant in resisting the claims of a plaintiff.
- (3) Demanding anything adverse to both a plaintiff and a defendant.

Intervention is either mandatory or permissive. Under the mandatory intervention provision: "[t]he court shall, upon timely application, permit a nonparty to intervene in the action or proceeding if either . . . (A) [a] provision of law confers an unconditional right to intervene [or] (B) [t]he person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties." (Code of Civ. Proc., § 387(d)(1)). Under permissive intervention provision, "[t]he court may, upon timely application, permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both." (Code of Civ. Proc., (d)(2)). "[T]he trial court has discretion to permit a nonparty to intervene where the following factors are met: (1) the proper procedures have been followed; (2) the nonparty has a direct and immediate interest in the action; (3) the intervention will not enlarge the issues in the litigation; and (4) the reasons for the intervention outweigh any opposition by the parties presently in the action." (*Reliance Ins. Co. v. Superior Court* (2000) 84 Cal.App.4th 383, 386).

"A nonparty shall petition the court for leave to intervene by noticed motion or ex parte application. ((Code of Civ. Proc., § 387(c)). The petition shall include a copy of the proposed complaint in intervention or answer in intervention and set forth the grounds upon which intervention rests." If the nonparty fails to attach to its motion a copy of the proposed complaint or answer in intervention, a court may properly deny the motion to intervene. (*Sutter Health Uninsured Pricing Cases* (2009) 171 Cal.App.4th 495, 513).

B. REQUEST FOR JUDICIAL NOTICE

Under Evidence Code section 452(c)(d), the court may take judicial notice of court records and actions of the state. Here, Wells Fargo filed two volumes of request for judicial notice: Volume 1, Nos. 1-12 (totaling 245 pages); and Volume 2, Nos. 1-12 (totaling 464 pages). The Court GRANTS the request for judicial notice, Volume 1, Nos. 1, Exhibit 1 (Deed of Trust) and No. 2, Exhibit 2 (Corporate Assignment). However, the Court does not take judicial notice of the truth of assertions within the court records. (*Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375).

The remainder of the request for judicial notice is DENIED as irrelevant to the inquiry.

III. ANALYSIS

Here, Wells Fargo seeks mandatory leave to intervene under Code of Civil Procedure section 387(b), based on its interest as the recorded beneficiary status in the Deed of Trust on the Subject Property (Santa Clara County

Recorder's Office, Instrument No. 18561062) or in the alternative permissive intervention based on its interest in this litigation, successor of either of the parties, or an interest against both under section 387(a). (Wells Fargo's Motion, p. 9-13). On February 16, 2012, a corporate assignment of the Deed of Trust was recorded (Instrument No. 21540371) reflecting assignment of the Deed of Trust by beneficiary MERS to Wells Fargo. (*Id.*, at p. 2).

Defendant Greenpoint filed a notice of non-opposition to Wells Fargo's motion to intervene.

Plaintiff Mungaray opposes Wells Fargo's motion to intervene on the grounds that litigation has concluded after judgment was entered and that this court lacks jurisdiction as the case is pending appeal. (Opposition of Mungaray, p. 1-3). Plaintiff also argues that the motion to intervene is untimely and avers Wells Fargo knew or should have known about the underlying litigation as well as related bankruptcy proceedings through public filings and enforcement of judgment. (*Id.*, at p. 3-5). Plaintiff Mungaray asserts he would suffer substantial prejudice if intervention is allowed as he is seeking to defend the judgment that is pending appeal and incur extra expense, delay resolution, and allow Wells Fargo to intervene after it failed to act earlier. (*Id.*, at p. 6; Supplemental Opposition by Mungaray, p. 5). Plaintiff asserts that Defendant Greenpoint's non-opposition to the motion to intervene is irrelevant. Plaintiff objects to Wells Fargo's request for judicial notice as improper. (*Id.* at p. 5-6). Plaintiff argues that this court should await the appellate court decision rather than alter party alignment. (Supplemental Opposition by Mungaray, p. 6).

Similar to the plaintiff's opposition, Barry B. Eskanos, as the assignee of the monetary judgment entered filed an opposition on the grounds: that Wells Fargo's motion to intervene is untimely, arguing that the bank knew of the related bankruptcy proceedings and failed to act; trial court lacks jurisdiction under Code of Civil Procedure section 916(a) as an appeal has commenced; intervention would prejudice the undersigned assignee of the judgment; Defendant Greenpoint's non-opposition is irrelevant; and judicial notice should be denied as it uses extrinsic evidence on disputed facts. (Opposition by Eskanos, p. 1-2 and Declaration of Eskanos). Mr. Eskanos argues that intervention cannot be used to relitigate judgment or service. (Supplemental Opposition of Eskanos, p. 2-4).

In reply, Wells Fargo contends that while Plaintiff disputes Wells Fargo's beneficiary status of his Deed of Trust, Plaintiff Mungaray does not dispute that Wells Fargo claims an interest in the Subject Property involved in the matter. (Reply brief, p. 2). Thus, Wells Fargo asserts that it is undisputed that it "claims an interest relating to the property. . . that is the subject of the action." (*Id.*). Wells Fargo contends that the loan is still outstanding on the Deed of Trust and the plaintiff seeks quiet title by contending that the mortgage on the Subject Property was paid in full, and thus is so situated that the disposition of the action may impair or impeded Wells Fargo's ability to protect that interest under section 387(d)(2)(B). (*Id.*, at p. 3). Wells Fargo avers that its interests are not adequately represented by GreenPoint, as it has no claim on the Subject Property. (*Id.*, at p. 3-5). Wells Fargo also points out that references to other cases in litigation is irrelevant to intervention. (*Id.*).

The court addresses the timeliness. Plaintiff Mungaray and Mr. Eskanos asserts that Wells Fargo failed to appear earlier and act with diligence, and intervention at this stage would result in prejudice. In opposition, the plaintiff and Mr. Eskanos assert that Wells Fargo was "on notice" of the facts of the case and that judgment was entered. Wells Fargo emphasizes that it was not named as a party and notice of the case or related causes does not constitute notice or delay. Wells Fargo contends that timeliness is determined by the totality of the circumstances, including the stage of the proceedings; prejudice to other parties from the delay in seeking to intervene; and the reason for the delay. (Reply brief, p. 5). Wells Fargo asserts that once the judgment was vacated, it acted with diligence to intervene a become a party to the litigation. As to prejudice, Wells Fargo asserts that any prejudice to Plaintiff Mungaray would be minimal, especially in light of the fact that the plaintiff did not include Wells Fargo as a party in his Complaint and that the only issue at appeal is initial default judgment being vacated. "[I]ntervention is possible, if otherwise appropriate, at any time, even after judgment." (*Mallick v. Superior Court* (1979) 89 Cal.App.3d 434, 437). The

timeliness of a petition to intervene is determined by the totality of the circumstances facing the intervenor, focusing on three factors: (1) the stage of proceedings; (2) the prejudice to other parties from the delay in seeking to intervene; and (3) the reason for delay. (*Crestwood Behavioral Health, Inc. v. Lacy* (2021) 70 Cal.App.5th 560, 574). “Prejudice to the existing parties” caused by delay is the most import factor. (*Ibid.*). The Court finds that the motion to intervene is timely in light of the totality of circumstances.

Plaintiff Mungaray and Mr. Eskanos argument that this court lacks jurisdiction pending appeal under section 916(a), is rejected. In his supplemental opposition, Plaintiff Mungaray also argues that this court should await the appellate court decision rather than alter party alignment. (Supplemental Opposition by Mungaray, p. 6). However, the court rejects that assertion. On June 23, 2026, the Sixth Appellate District Order directed this Court to hear the issue of intervention in this matter.

The court finds that Wells Fargo demonstrates an interest relating to the Subject Property based on its recorded beneficiary status in the Deen of Trust. Wells Fargo’s motion was preceded by an ex parte application that was denied pending stay on appeal, which the Sixth District ordered hearing. Weighing the totality of circumstances and the plaintiff’s assertion of prejudice that he will have to incur expenses and delay a resolution, the court notes that the underlying basis for the appeal is the order vacating the judgment. Accordingly, Wells Fargo is entitled to mandatory intervention pursuant to section 387. Wells Fargo seeks “. . . intervention claims an interest relating to the property or transaction that is the subject of the action and it is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties.” (Code of Civ. Proc., §387(d)(1)(B)). “[T]he trial court has discretion to permit a nonparty to intervene where the following factors are met: (1) the proper procedures have been followed; (2) the nonparty has a direct and immediate interest in the action; (3) the intervention will not enlarge the issues in the litigation; and (4) the reasons for the intervention outweigh any opposition by the parties presently in the action.” (*Reliance Ins. Co. v. Superior Court* (2000) 84 Cal.App.4th 383, 386).

The court also notes that Wells Fargo has attached as Exhibit A to its motion to intervene, a copy of the proposed Answer in Intervention.

IV. CONCLUSION

Based on the foregoing, the motion to file an Answer in Intervention is GRANTED.

Wells Fargo is ordered to file its proposed Complaint-in-Intervention within ten (10) days of the date of this Order. The Court will prepare the formal Order.

Calendar Line # 2
Case Name Bernardo Magana Loya et al vs General Motors LLC
Case No. 23CV411778
Motion for Attorney’s Fees and Cost
I. <u>BACKGROUND</u>
This case stems from a Complaint under the Song-Beverly Act that was filed on February 15, 2023. The parties filed a notice of settlement on June 24, 2025.
Before the court is Plaintiff’s motion for attorney’s fees, costs and enhancer based on a resolution of claim arising out of Plaintiff’s 2019 Chevrolet Silverado 1500, vehicle identification number 3GCUYBEF9KG700309 (“Subject Vehicle”), which was brought under the Song-Beverly Consumer Warranty Act. (Complaint, p. 2). Plaintiffs

asserts it is the prevailing party upon resolution of the case and attorney's fees, costs, and expenses. (*Id.*). Plaintiff asserts that on March 31, 2025, parties agreed that the plaintiff would be deemed the prevailing party for purposes of this motion as part of its settlement agreement. (Plaintiff's Motion, p. 7, foot note 1). The principal settlement amount included \$77,000.00 plus prejudgment interest, totaling \$93,370.31. (Declaration of Wood). Plaintiff seeks an award totaling \$58,879.75, including: \$36,586.50 incurred in attorney fees, plus a 1.5 time multiplier for a total of \$54,879.75; and an additional \$4,000.00 for Plaintiff's counsel to review Defendant's Opposition, draft the Reply brief, and attend the hearing on this Motion (Plaintiff's Motion, at p. 2 and 7).

Defendant General Motor LLC ("GM") opposes the motion on the grounds that the plaintiff's motion is untimely, the attorney's fees requested is unreasonable and fails to meet its burden for establishing a basis for a fee enhancement, and that the multiplier is unreasonable given the unremarkable standard breach-of-warranty lemon law case. (Opposition, p. 5-6). Defendant GM requests that the plaintiff's motion be denied as untimely, or in the alternative, be reduced to \$18,983.30, which would constitute a reasonable amount. (*Id.*, at p. 6).

The Court has carefully reviewed the following: Plaintiff's notice of motion and memorandum of points and authorities (totaling 19 pages), Declaration of Carey Wood and attached Exhibits 1-7 (totaling 198 pages); Defendant's opposition (total 18 pages); Declaration of Natalie Keshishian and attached Exhibits A-R (totaling 908 pages); Reply brief (totaling 11 pages); and supporting Declaration of Wod (totaling 8 pages); proof of services; and the pleadings.

II. LEGAL STANDARD

A. ATTORNEY'S FEES AND COST

Pursuant to Code of Civil Procedure section 1033.5(a)(1), a prevailing party is entitled to recover its attorney's fees when authorized by contract, statute, or law. (*See also*, Civ. Code § 1717(a)). "A successful party means a prevailing party, and [a party] may be considered prevailing parties for attorney's fees purposes if they succeed on any significant issue in litigation which achieves some of the benefit the parties sought in bringing suit." (*Bowman v. City of Berkeley* (2005) 131 Cal.App.4th 173, 178).

In a lemon law action, costs and expenses, including attorney's fees, may be recovered by a prevailing buyer under the Song-Beverly Act. (Civ. Code, § 1794(d)). Section 1794 provides: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794).

Thus, the statute includes a "reasonable attorney's fees" standard. The attorney bears the burden of proof as to "reasonableness" of any fee claim. (Code Civ. Proc., § 1033.5(c)(5)). This burden requires competent evidence as to the nature and value of the services rendered. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559). "Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records." (*Ibid.*).

B. CALCULATION FOR FEES

In determining a reasonable attorney fee, the trial court considers the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 36). The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (*Ibid.*) These facts include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (*Ibid.*). "The courts repeatedly have

stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom, and this includes the determination of the hourly rate that will be used in the lodestar calculus. In making its calculation, the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.” (*569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 437, citations omitted).

“Under the lodestar adjustment methodology, the trial court must initially determine the actual time expended and then ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. Factors to be considered include, but are not limited to, the complexity of the case and procedural demands, the attorney skill exhibited and the results achieved. The prevailing party and fee applicant bears the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount. It follows that if the prevailing party fails to meet this burden, and the court finds the time expended or amount charged is not reasonable under the circumstances, then the court must take this into account and award attorney fees in a lesser amount.” (*Mikhaeilpoor v. BMW of N. Am., LLC* (2020) 48 Cal.App.5th 240, 247 [cleaned up]).

III. ANALYSIS

Plaintiff seeks attorney’s fees, cost, and an enhancer in total amount \$58,879.75, including: \$36,586.50 incurred in attorney fees for 94.80 hours spent in litigating the case; plus a 1.5 time multiplier for a total of \$54,879.75; and an additional \$4,000.00 for Plaintiff’s counsel to review Defendant’s Opposition, draft the Reply brief, and attend the hearing on this Motion (*Id.*, at p. 2-7, and 15). Plaintiff served initial discovery on the defendant on April 24, 2023. (*Id.*, at p. 9). Plaintiff asserts that the defendant’s responses were deficient, and after multiple attempts to meet-and-confer successfully, the plaintiff filed a motion to compel further responses to Form Interrogatories, Special Interrogatories, and Request for Production of Documents. (Declaration of Woods, p. 5). Plaintiff notes that on November 7, 2023, the court granted the plaintiff’s motion to compel discovery. Plaintiff asserts that the defense engaged in delay, obstruction, and incoherent discovery, such as unilaterally serving a notice of deposition of the plaintiff and request for production of documents, which the plaintiff’s counsel opposed (Plaintiff’s Motion, p. 4); and filing a motion to compel the deposition of the defendant’s Person Most Knowledgeable (“PMK”) on January 27, 2025. Plaintiff engaged in deposition of percipient witnesses in litigating this matter. (*Id.*, at p. 11). Even after parties reached a settlement agreement on March 31, 2025, plaintiff’s counsel avers that the defense would not resolve the attorney’s fees and cost motion, which resulted in this motion. (*Id.*). Plaintiff’s counsel asserts that due to defense’s strategy and delay, the plaintiff had to incur extra costs and fees in seeking motions. (*Id.*, at p. 4).

Defendant GM opposes the motion as grossly untimely. Defendant emphasizes that the plaintiff accepted the 998 offer and filed this motion for attorney’s fees 228 days after the notice of settlement. (Declaration of Keshishian, ¶14). Based on the delay, the defendant seeks a denial of attorney’s fees. (Opposition, at p. 5). Defense argues that it extended an offer to resolve the plaintiff’s attorney’s fees and costs for \$20,000.00, but believes that a reasonable award of fees and cost in this matter amounts to \$18,983.30. (*Id.*).

A. ATTORNEY’S FEES

Plaintiff asserts that the settlement offer obtained required the diligent work of plaintiff’s counsel, that included research; drafting a complaint; reviewing defendant’s answer; propounding discovery; responding to written discovery; filing motions to compel further responses to initial discovery; filing a motion to compel deposition and request for production of documents; opposing improper deposition notices; etc. Plaintiff asserts its vigorous efforts were reasonably and necessary given Defendant’s refusal to repurchase the Subject Vehicle prior to litigation; denial of liability; the defendant’s decision to extensively litigate this case before offering a reasonable settlement offer;

and the defendant's refusal to resolved attorney's fees, cost, and expenses absent motion practice. (Plaintiff's Motion, p. 15; Wood Decl. ¶¶ 3-45).

Plaintiff sets forth the attorney's fees as follows: "...Erik Whitman, during the relevant time period, are: \$475.00 per hour from February 2023 to December 2023, and \$490.00 per hour from January 2024 until his departure in February of 2024. Wood Decl. ¶ 46. The hourly rates for the subsequent handling attorney, Lara Rogers, during the relevant time period, are: \$350.00 per hour from February 2024 to June 2024, \$415.00 per hour from July 2024 through January 2025, and \$430.00 per hour since February 3, 2025. Id. ¶ 47. The hourly rates for the supervising attorney and senior partner, Carey B. Wood, are: \$500.00 per hour from August 2022 to January 3, 2024, \$520.00 per hour from January 4, 2024 to July 9, 2024, \$525.00 per hour from July 10, 2024 to February 2, 2025, and \$540.00 per hour since February 3, 2025. Id. ¶ 48. The hourly rate for managing partner Jessica Anvar for her work, in December 2022, at the inception of this matter was \$525.00 per hour, and \$575.00 per hour in July of 2025. Id. ¶ 49. The hourly rates for the handling attorney, Bobby C. Walker, during the relevant time period, are: \$430.00 per hour since February 3, 2025. Id. ¶ 50. These rates are appropriate given each attorney's relative experience and qualifications. Wood Decl. ¶¶ 46-50." (Plaintiff's Motion, p. 14). Plaintiff asserts that it has received these attorney's fees in similar cases.

The hourly rates for the paralegals: Destiny Olvera, Robert Aguilar, Jasmine Ochoa, Virginia Walls, Araceli Alatorre, Isabella Garcia, and Cesar Utuy performed paralegal work on this matter, billing at the rate of \$200.00-\$215.00 per hour. that worked on the case are \$200.00-\$215.00, (*Id.*; Declaration of Wood, ¶ 51). Paralegal fees are generally recoverable as attorney fees. (*Guinn v. Dotson*, (1994) 23 Cal.App.4th 262, 268; *Sundance v. Municipal Court* (1987) 192 Cal.App.3d 274)).

Defense avers that the amount of fees and multiplier requested by the plaintiff is "absurd" and unreasonable given the routine nature of this lemon law case. GM asserts that plaintiff's counsel managed to bill grossly excessive amounts for preparing basic template-based discovery, correspondence, and pleadings. Defense argues that the plaintiff has exploited use of these boilerplate templates from case to case and that the hours are "bloated." (Opposition., at p. 5-10). Defendant argues that plaintiff's counsel relied almost exclusively on templates and thus fees are excessive and unreasonable. (*Id.*, at p. 13). Defense avers that the plaintiff may have opted to use a legal secretary or paralegal in drafting the form templates to reduce costs. (*Id.*). Defendant identifies the boilerplate templates in its opposition, including pre litigation work, template discovery, template meet and confer correspondence, motions to compel, templated fee motion, and seeks a reduction of 49.7 hours or \$17,603.20 in fees. (*Id.*, at p. 9-15). Defendant also contends that time billed for paralegals Walls (10.5 hours (\$2,205.00)) and Olivera (9.6 hours (\$2,064.00)) constitute clerical blocked billing such as serving, receiving, saving, scheduling, and calendaring work, that constitute block billing and non-legal work. (*Id.*, at p. 13-14). Accordingly, the defense seeks a 16 hour reduction (\$3,415.20) of clerical or duplicative work performed by attorneys. (*Id.*).

Defense seeks the following reductions:

TASK REDUCTION IN HOURS IN FEES

Templated Discovery Requests 1.6 \$760.00

Templated Meet and Confer 2.5 \$1,187.50

Templated Motion to Compel Further 15.1 \$7,172.50

Discovery Responses

Motion to Compel Deposition and Ex Parte 4.7 \$1,415.00

Templated Discovery Responses 1.5 \$712.50

Templated Motions in limine 2.1 \$903.00

Template Fee Motion 2.9 \$1,280.00

Pre-Litigation Work 3.3 \$757.50
Paralegal Clerical Time and Block-Billed Time 16.0 \$3,415.20
TOTAL 49.7 \$17

(Opposition, p. 16). Defense also argues that the plaintiff is not entitled to the \$4,000.00 it seeks in “anticipated fees.” (*Id.*).

In Reply, the plaintiff argues that its motion is timely and notes that Plaintiff filed a notice of conditional settlement on March 21, 2025. This notice indicated that a request for dismissal would be filed no later than July 18, 2025. (Reply, p. 2-3). The dismissal hearing is currently set for August 13, 2026. (*Id.*). Plaintiff rejects the defendant’s argument that its hours are inflated based on the extent of discovery issues and contends that while it uses templates, the research and review is tailored to each case. (*Id.*). Further, the plaintiff points that the motion to compel in this matter were reasonable and necessary in order to obtain further responses and deposition of PMQ. (*Id.*, at p. 5-6). Plaintiff also points to the fact that it had to prepare motions in limine in this matter, which are unique to each case. (*Id.*). Plaintiff asserts that the attorney’s fees are recoverable as the plaintiff has laid out the years of experience of each attorney that worked on this matter and is commensurate with the experience as well as argues that the paralegal time expended is warranted and recoverable. (*Id.*, at p. 8-9).

The Court GRANTS attorney’s fees in the amount of \$23,5780.03

B. COST

Plaintiff’s motion did not address any costs and the opposition also did not address costs. The Court notes that on June 24, 2025, the plaintiff submitted a 49-page Memorandum of Costs for \$3,689.97 that comprised of filing and motion fees, deposition costs, and service of process fees. The motion included Exhibits and a proof of service to defense counsel that same day indicating electronic service. The Memorandum of Costs is unopposed and no motion to tax was filed.

The Court GRANTS costs in the amount of \$3,689.97.

C. MULTIPLIER

Plaintiff asserts that a 1.50 multiplier is warranted based on the following: (1) the risks presented by the litigation; (2) the novelty and difficulty of the legal and factual issues involved; (3) the results obtained on behalf of the plaintiff(s); and (4) the skill exhibited by counsel. (Plaintiff’s Motion, p. 16). Plaintiff counsel asserts that it reached an excellent outcome, including full restitution and civil penalty for the Subject Vehicle due to its vigorous litigation. (*Id.*, at p. 17). Plaintiff’s counsel accepted representation on a contingency basis and failure would have resulted in no recovery for the plaintiff and its counsel. Plaintiff avers that the defense engaged in aggressive and stonewalling litigation tactics. (*Id.*). Plaintiff asserts that the issues involved in this litigation were complex due to the plaintiff’s repair history and types of malfunctions at hand. (*Id.*, at p. 18). Plaintiff’s counsel assert that it demonstrated skill, e.g. knowing about the brake defect and demonstrating a diplomatic approach to the PMK depositions. (*Id.*).

Defendant argues that any enhancement in this matter is “completely unjustified.” (Opposition, p. 14). Defendant asserts that the plaintiff has failed to demonstrate the elements to support awarding a multiplier. Defense argues that a substantial amount of work in Song-Beverly cases are virtually identical from case to case and settlements are reached withing the statutory remedies. (Declaration of Keshishian, ¶¶ 16-17). Defense avers that the plaintiff’s counsel has dozens, if not hundreds of active Song-Beverly cases against GM and other manufactures, and the work and outcome in this case is not novel, difficult, or superlative. The high volume of Song-Beverly cases also reduces

any risk of taking the matter on a contingency basis, which is the nature of the work. (*Id.*, at p. 15). Allowing a multiplier would result in duplicate recovery.

In reply, plaintiff's counsel asserts that it went up against a large corporate defendant that weilded its vast resources, which required tenacious meet and confer and diligent motions practice by the attorney. The plaintiff thus argues that the factors are met and a multiplier is warranted. (Reply, p. 9).

Based on the straightforward nature of the case, lack of demonstration of unique work pointing to a novel or difficult issue, type of case handled by plaintiff's counsel's firm Consumer Law Experts, P.C in the Song-Beverly matter, and resolution via 998 offer by the parties, the Court does not find that the plaintiff has demonstrated that a multiplier is warranted in this matter. The Court DENIES Plaintiff's request for a multiplier.

D. ESTIMATED COSTS

Plaintiff requested \$4,000.00 for anticipated time spent on preparing and submitting a reply brief and appearing for Court. Plaintiff also asserts to having spent five hours reviewing the opposition and drafting a reply for a total expense of \$2,700.00 and expends to spend another two to three hours appearing in court with estimated costs of \$1,080.00 - \$1,620.00. (Reply, at p. 2).

The defendant's oppose awarding any anticipated fees for similar reasons to other fees and costs noted above.

The Court DENIES the requested \$4,00.00 of anticipated time, but GRANTS one hour of attorney's fees for preparation and filing a reply brief at the requested attorney's rate of \$540.00.

I. CONCLUSION

Based on the foregoing, the Court awards the plaintiff a total of \$24,320.03 that consists of \$23,5780.03. in attorney's fees and \$540.00 in reply brief preparing and filing.

The unopposed memorandum of costs is GRANTED in the amount of \$3,689.97.

The request for a 1.50 enhancer by the plaintiff is DENIED.

The Court will prepare the formal Order.

Calendar Lines # 3-4
Case Name Joey Mowry vs Daljeet Sagoo
Case No. 25CV457823
Motion to Compel Responses to Form Interrogatories (Line # 3); Motion to Compel Responses to Special Interrogatories (Line #4); and Sanctions
I. <u>BACKGROUND</u>
A. BRIEF FACTUAL BACKGROUND
This case stems from a February 3, 2025 Complaint filed by Plaintiff Joey Mowry ("Mowry") alleging medical malpractice against Defendant Daljeet Sagoo, M.D. ("Sagoo"). (Complaint). On May 19, 2025, Defendant Sagoo filed a demurrer to the plaintiff's complaint and motion to strike portions of the Complaint for punitive damages. The demurrer and motion were unopposed and came for hearing on February 5, 2026, which the court sustained the demurrer with ten days leave to amend and granted the motion to strike.

B. RELEVANT PROCEDURAL BACKGROUND

On March 18, 2026, Defendant Sagoo propounded initial written discovery including form interrogatories (“FROG”), special interrogatories (“SPROG”), request for production of documents, and request for admissions, set one on Plaintiff Mowry via mail service. (Declaration of Fessinger, at p. 7; Exhibit A). Defendants asserts that responses were due on April 23, 2026 (*Id.*). No responses were served. On April 27, 2026, defense counsel sent the plaintiff a meet-and-confer letter setting forth that no responses were served and provided a unilateral extension for responses to be served by May 5, 2026, and that defendant would seek a motion to compel and sanctions if no responses were received. (*Id.*; Exhibit B). Since that time no responses or request for extensions were received by defendant Sagoo. (*Id.*).

On May 15, 2026, Defendant Sagoo filed this present motion to compel FROGs and SPROGS, set one, and sanctions. Defendant also filed motions to compel responses to RFPD and RFA that are set for a later date. The motion was accompanied by a proof of service indicating mail service and electronic mail service on the plaintiff on that same day.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 15, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the Defendants moving papers including a notice of motion to compel responses to FROGs, memorandum of points and authorities, Declaration of Robert B. Fessinger in support of the motion to compel responses to FROGS and attached Exhibits A-B (totaling 23 pages); notice of motion to compel responses to SROGS, memorandum of points and authorities, Declaration of Robert B. Fessinger in support of the motion to compel responses to SROGS and attached Exhibits A-B (totaling 20 pages); proof of service; and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 2030.260(a), a party must respond to interrogatories within 30 days after service. If a party to whom interrogatories are directed does not provide a timely response, the propounding party may move for an order compelling response to the interrogatories. (*Id.*, § 2030.290, subd. (b)). There is no time limit for a motion to compel initial responses, and no meet and confer efforts are required. (See *Id.*, § 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411). Nor must a separate statement be filed. (Cal. Rules of Court, rule 3.1345(b)(1)). In addition, a party who fails to provide a timely response generally waives all objections. (Code Civ. Proc., § 2030.290, subd. (a)).

California courts have taken a liberal approach to permissible discovery, which has led the courts to resolve any doubt in favor of permitting discovery. (*Pacific Tel. & Tel. Co. v. Superior Court* (1970) 2 Cal.3d 161, 173 (“In accordance with the liberal policies underlying the discovery procedures, California courts have been broad-minded in determining whether discovery is reasonably calculated to lead to admissible evidence). (*Id.* at 172; *see also*, *Pettie v. Superior Court* (1960) 178 Cal.App.2d 680, 687). As a practical matter, it is difficult to define at the discovery stage what evidence will be relevant at trial. Therefore, the party seeking discovery is entitled to substantial leeway. (*Pacific Tel. & Tel. Co.*, *supra*, 2 Cal.3d at p. 172). The courts have taken the view if an error is made in ruling on a discovery motion, it is better that it be made in favor of granting discovery of the non-discoverable rather than denying discovery of information vital to preparation or presentation of the party's case or to efficacious settlement of the dispute.” (*Norton v. Superior Court* (1994) 24 Cal.App.4th 1750, 1761).

“As a general matter, the statutory scheme imposes no obligation on a party propounding interrogatories to establish good cause or prove up the merits of any underlying claims.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 550). Indeed, a litigant “is entitled to demand answers to its interrogatories, as a matter of right, and without a prior showing, unless the party on whom those interrogatories are served objects and shows cause why the questions are not within the purview of the code section.” (*Id.* at p. 541, citing *West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 422).

III. ANALYSIS

Here, the defendants served the plaintiff with initial discovery, including FROG and SPROG, set one on March 18, 2026. (Declaration of Fessinger, p. 7). Defense asserts that as of the filing of the motion, no responses were received. (*Id.*).

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 8, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

IV. SANCTIONS

Pursuant to Code of Civil Procedure section 2030.290(c), when a party moves to compel initial responses to interrogatories, “the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes [the motion], unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.290, subd. (c)).

The Defendants seek a total of \$960.00 in attorney’s fees and cost for preparing the motion to compel FROGs asserting an hourly rate of \$300.00 and one hour in preparation and one hour in anticipated opposition and \$60.00 in filing fees. The Court notes that the total sum requested is in error as it accounts for three hours. The defense also seeks \$660.00 for the motion to compel responses to SPROGs based on the same hourly rate of \$300 for one hour to prepare the motion, one hour of anticipated time to file a response and appear in court, and \$60.00 for filing fees. The Court will not award hours for anticipated reply briefs as noted above, no opposition papers were filed. Based on the straightforward nature of the motions, the Court reduces the requested number of hours to one hour for each motion at the requested hourly rate of \$300.00 and will award the two separate filing fees. Thus, the requested sanctions in the amount of \$960.00 for the motion to compel FROGS is DENIED, the Court awards \$360.00. The requested sanctions amount of \$660.00 for the motion to compel FROGS is DENIED, the Court awards \$360.00.

V. CONCLUSION

Based on the foregoing, the Court GRANTS the defendants motion to compel responses to FROG and SPROG, set one. Plaintiff is ORDERED to serve verified responses to FROG and RFPD, set one within 20 days from this hearing date.

Based on the Court’s granting the motion to compel and the plaintiff not serving any responses to FROGs and SPROGs, the defendant’s motion for sanctions against the plaintiff is GRANTED. However, the requested sanctions in the amount of \$960.00 for the motion to compel FROGS is DENIED, the Court awards \$360.00. The requested sanctions amount of \$660.00 for the motion to compel FROGS is DENIED, the Court awards \$360.00. The Plaintiff is ORDERED to pay the defendant \$720.00 within 20 days from this hearing date. The Court will prepare the formal Order.

Calendar Line # 6
Case Name Jennifer Voges et al vs Huiqiong Deng et al
Case No. 25CV483365
Demurrer Before the court is defendant El Camino Health dba El Camino Hospital’s demurrer to plaintiff’s complaint for damages. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. <u>I. BACKGROUND</u> Plaintiff Jennifer Voges (“Voges”) was a long-term prescribed benzodiazepine user and was in active benzodiazepine withdrawal when she sought and received care from defendant El Camino Health dba El Camino Hospital (“ECH”). (Complaint, ¶8). Despite plaintiff Voges’s benzodiazepine dependence and active withdrawal, defendant ECH staff administered opiates, including morphine and Dilaudid (hydromorphone), creating a high risk combination known to increase respiratory and neurologic dangers. (Complaint, ¶9). As a result of the contradicted opioids, plaintiff Voges suffered a drug-induced crisis requiring Narcan to reverse opiate toxicity and she was then given anti-psychotic medication that is contraindicated in benzodiazepine withdrawal, further destabilizing her condition. (Complaint, ¶10). Plaintiff Voges required Narcan after opiate administration and was given antipsychotic medication that worsened her condition. (<i>Id.</i>). Defendant ECH failed to obtain informed consent for, or disclose, the Narcan administration during or after the event. (Complaint, ¶11). Defendant ECH never informed plaintiff Voges or her family that Narcan had been administered, did not obtain consent, and did not disclose the intervention afterward. (<i>Id.</i>). Plaintiff Voges and her family later discovered this only upon review of medical records. (<i>Id.</i>). Defendant ECH staff refused to provide plaintiff Voges’s baseline, prescribed, benzodiazepine and refused her progesterone, despite documented prescription and visible withdrawal symptoms, accelerating her deterioration. (Complaint, ¶12). Plaintiff Voges received care at defendant ECH between December 31, 2024 and January 8, 2025. (Complaint, ¶2). Rather than stabilizing plaintiff Voges, defendant ECH transferred her to defendant Aspen Skilled Healthcare, Inc. dba Woodlands Healthcare Center (“Woodlands”), a skilled nursing facility, for physical therapy even though she was medically unstable and required medical, not rehabilitative, care beyond the scope of a skilled nursing facility. (Complaint, ¶12). Defendant Woodlands lacked qualified personnel to properly manage benzodiazepine withdrawal and opiate complications. (<i>Id.</i>). Plaintiff Voges’s husband ultimately removed plaintiff Voges and transported her to defendant Stanford Health Care dba Stanford Hospital (“Stanford”) where she was immediately admitted. (Complaint, ¶15). On December 30, 2025, plaintiffs Voges and Darren Voges filed a complaint against defendant ECH, among others, asserting causes of action for: (1) Professional Negligence (2) Medical Battery (3) Negligent Hiring, Supervision, and Retention (4) Negligence Per Se (5) Loss of Consortium On May 19, 2026, defendant ECH filed the motion now before the court, a demurrer to the second and fourth causes of action of plaintiffs’ complaint. <u>II. LEGAL STANDARD</u>

Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 (*Hahn*)). When considering demurrers, courts accept all well pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*)).

III. ANALYSIS

A. MEDICAL BATTERY

Our high court has made it clear that battery and lack of informed consent are separate causes of action. A claim based on lack of informed consent—which sounds in negligence—arises when the doctor performs a procedure without first adequately disclosing the risks and alternatives. In contrast, a battery is an intentional tort that occurs when a doctor performs a procedure without obtaining any consent. (*Saxena v. Goffney* (2008) 159 Cal.App.4th 316, 324).

Plaintiff Voges’s second cause of action is labeled as one for medical battery but then alleges, in relevant part, “Defendants . . . performed medical interventions without obtaining [plaintiff Voges’s] informed consent or by failing to disclose material information, risks, alternatives, or by misrepresenting necessity, including Narcan administration at [ECH], concealed administration of anti-psychotics” (Complaint, ¶26).

Regardless of whether plaintiff Voges is asserting a lack of informed consent or the lack of consent entirely, defendant ECH contends no consent was required under the circumstances alleged here, i.e., plaintiff Voges “suffered a drug-induced crisis requiring Narcan to reverse opiate toxicity.” (Complaint, ¶10). Defendant ECH relies upon *Cobbs v. Grant* (1972) 8 Cal.3d 229, 243 (*Cobbs*), where the court explained, “A patient should be denied the opportunity to weigh the risks only where it is evident he cannot evaluate the data, as for example, where there is an emergency or the patient is a child or incompetent. For this reason the law provides that in an emergency consent is implied.” (See also *Burchell v. Faculty Physicians & Surgeons etc.* (2020) 54 Cal.App.5th 515, 525—“a doctor may act beyond the patient's express authorization in ‘life- or health-threatening situations.’”).

According to defendant ECH, Narcan is “typically used as an emergency reversal agent when a patient is in active opiate toxicity, which constitutes an acute medical emergency. At the time, Ms. Voges would be in a condition where she was unable to adequately consent and delay could potentially lead to respiratory arrest or even death.”¹ While this may seem like general knowledge to defendant, such facts are not found in the plaintiff’s complaint. Plaintiff Voges’s own use of the word “crisis” may be the basis for the court to infer that her situation was an “emergency” situation, but the court is nevertheless persuaded by plaintiff Voges that whether her situation was one where her consent was not required is better left to a trier of fact.

Moreover, as plaintiff Voges points out in her opposition, the complaint further alleges defendant ECH “concealed administration of anti-psychotics.” (Complaint, ¶26; see also ¶10—plaintiff Voges “was [, subsequent to the reversal of opiate toxicity,] given anti-psychotic medication that is contraindicated in benzodiazepine withdrawal.”). The reasonable inference to be drawn from the allegation that such administration was “concealed,” is that the drugs were administered without plaintiff Voges’s knowledge and, consequently, without plaintiff Voges’s consent. The allegation of “concealed administration of anti-psychotics” is sufficient to support plaintiff Voges’s second cause of action for medical battery.

¹ See page 8, lines 6 – 9, of the memorandum of points and authorities in support of defendant [ECH’s] demurrer to plaintiff’s complaint for damages.

Accordingly, defendant ECH's demurrer to the second cause of action of plaintiff Voges's complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for medical battery is OVERRULED.

B. NEGLIGENCE PER SE

Plaintiff Voges's fourth cause of action, entitled "Negligence Per Se," alleges, in relevant part, that defendants "violated patient-protection duties requiring informed consent for non-emergent interventions and post-emergency disclosure/ documentation of medications administered ... and disclosure of material findings." (Complaint, ¶34).

"Section 669 of the Evidence Code sets forth the doctrine commonly called negligence per se. It provides that negligence of a person is presumed if he violated a statute or regulation of a public entity, if the injury resulted from an occurrence that the regulation was designed to prevent, and if the person injured was within the class for whose protection the regulation was adopted. This presumption may be rebutted by proof that the violator did what might reasonably be expected of a person of ordinary prudence, acting under similar circumstances, who desired to comply with the law." (*Klein v. BIA Hotel Corp.* (1996) 41 Cal.App.4th 1133, 1140). Negligence per se is not a cause of action. "The negligence per se doctrine actually relates to the burden of proof." (*Cade v. Mid-City Hospital Corp.* (1975) 45 Cal.App.3d 589, 596). If the elements are met, the doctrine merely creates an evidentiary presumption in support of a claim for negligence.

" '[T]he doctrine of negligence per se is not a separate cause of action, but creates an evidentiary presumption that affects the standard of care in a cause of action for negligence.' [Citation.] [¶] The doctrine of negligence per se does not provide a private right of action for violation of a statute. [Citation.]" (*Johnson v. Honeywell Intern. Inc.* (2009) 179 Cal.App.4th 549, 555–56).

Of course, plaintiff Voges will be allowed to pursue/ apply the doctrine of negligence per se at time of trial, but since negligence per se is not a cause of action and plaintiff Voges has already stated a cause of action for professional negligence, defendant ECH's demurrer to the fourth cause of action of plaintiff Voges's complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for negligence per se is SUSTAINED WITHOUT LEAVE TO AMEND.

IV. CONCLUSION

Based on the foregoing, the Court Orders as follows: (1) Defendant ECH's demurrer to the second cause of action of plaintiff Voges's complaint for medical battery is OVERRULED; and (2) Defendant ECH's demurrer to the fourth cause of action of plaintiff Voges's complaint for negligence per se is SUSTAINED WITHOUT LEAVE TO AMEND. The Court will prepare the formal Order.